

## Shail Upadhyay v. State of U.P.

Allahabad High Court · Division Bench · 7 August 2013 · Writ-C No. 14199 of 2013 · Writ-C No. 14199 of 2013 · **Writ dismissed as not pressed/infructuous; interim stay vacated.**

### HEADNOTE

Writ against the ADM (City) Bareilly's direction to execute a sale deed of private land used for a re-aligned feeder to a private industry was dismissed as not pressed/infructuous after the parties reported a compromise. The Court did not examine the compromise or whether Supply Code cl. 4.6(E)(ii) or s.67 of the Electricity Act, 2003 authorised taking an objecting owner's land for that feeder, and vacated the 13.3.2013 stay of the ADM order and of energising the line.

### FACTUAL SUMMARY

Petitioners challenged a feeder laid for load increase to M/s B.L. Agro Oils Ltd. The 30.6.2012 sanction showed underground alignment along the public road, not their land. During construction the alignment was changed and 58 sq m of their land was used without consent. The ADM (City), Bareilly awarded Rs 2,63,000 compensation and directed them to execute a sale deed in favour of the industry. An earlier Division Bench stayed that order and barred energising the line.

### HOLDING-UNITS

#### INTERPLAY · UP-2005::4.6

private land used for private-industry feeder

#### HOLDING

The writ challenging the ADM (City) Bareilly's compensation and sale-deed directions over 58 sq m used, without consent, for a re-aligned feeder to a private industry was dismissed as not pressed/infructuous after the parties reported a compromise. The Court did not examine the compromise or the petitioners' case under Supply Code cl. 4.6(E)(ii) and s.67 of the Electricity Act, 2003, and vacated the interim stay of the ADM order and of energising the line. ¶ 1

**FLAG** Petitioners cited Clause 4.6(E)(ii); catalog also maps 4.6(f) and 4.66.

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — WHETHER SUPPLY CODE CL. 4.6(E)(II) PERMITS TAKING A PRIVATE OWNER'S LAND FOR LINES SUPPLYING A PRIVATE INDUSTRY WITHOUT CONSENT

Raised on 13.3.2013; petition later dismissed as not pressed. ¶ 1

#### NOT DECIDED — WHETHER S.67 OF THE ELECTRICITY ACT, 2003 APPLIES ONLY TO DISTRIBUTION LINES FOR PUBLIC USE AND NOT TO A PRIVATE OR COMMERCIAL INDUSTRIAL FEEDER

¶ 1

#### NOT DECIDED — WHETHER THE ADM (CITY) COULD ACQUIRE LAND, FIX COMPENSATION, AND COMPEL A SALE DEED FOR SUCH A LINE

Prima facie stay of 13.3.2013 held he could not; that stay was vacated on dismissal as not pressed. ¶ 1